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Executive Order.

THE Consular Regulations are hereby amended as follows:

Paragraph 5 is replaced by the following:

5. Consuls-General at Large.—Consuls general at large are required by law to make such inspections of consular offices as the Secretary of State shall direct, and shall report to him. Each consular office shall be inspected at least once in every two years. Whenever the President has reason to believe that the business of a consulate or a consulate-general is not being properly conducted and that it is necessary for the public interest, he may authorize any consul-general at large to suspend the consul or consul-general, and administer the office in his stead for a period of not exceeding ninety days. In such case the consul-general at large so authorized shall have power to suspend any vice or deputy consular officer or clerk in said office during the period aforesaid. The provisions of law relating to the official bonds of consuls-general, and the provisions of sections seventeen hundred and thirty-four, seventeen hundred and thirty-five, and seventeen hundred and thirty-six, Revised Statutes of the United States, shall apply to consuls-general at large.

Paragraphs 15 and 16 are no longer in force, and every other reference to commercial agents is canceled.

Paragraph 17 is amended by adding the words: Whenever, in his judgment, the good of the service requires it, consuls may be designated by the President without thereby changing their classification to act for a period not to exceed one year as vice-consuls-general, deputy consuls-general, vice-consuls, and deputy consuls; and when so acting they shall not be deemed to have vacated their offices as consuls.

Paragraph 28 is amended by adding the following sentence:

No person who is not an American citizen shall be appointed hereafter in any consulate-general or consulate to any clerical position the salary of which is one thousand dollars a year or more.

Paragraph 35 is amended by striking out the last sentence, beginning with "Salaried officers" and ending with "Form No. 3".

Paragraph 37 is amended to read as follows:

37. Prohibition against engaging in business.—No consul-general, consul, or consular agent receiving a salary of more than one thousand dollars a year shall, while he holds his office, be interested in or transact any business as a merchant, factor, broker, or other trader, or as a clerk or other agent for any such person to, from, or within the port, place, or limits of his jurisdiction, directly or indirectly, either in his own name or in the name or through the agency of any other person; nor shall he practice as a lawyer for compensation or be interested in the fees or compensation of any lawyer; and he shall in his official bond stipulate as a condition thereof not to violate this prohibition.

All consular officers whose respective salaries exceed one thousand dollars a year shall be subject to the prohibition against transacting business, practicing as a lawyer, or being interested in the fees or compensation of any lawyer contained in the preceding section. And the President may extend the prohibition to any consul-general, consul, or consular agent whose salary does not exceed one thousand dollars a year or who may be compensated by fees, and to any vice or deputy consular officer or consular agent, and may require such officer to give a bond not to violate the prohibition.

Paragraph 43 is amended by adding the words: See paragraph 37. The forms for consular bonds are changed by section 6 of the Act of April 5, 1906.

Paragraph 480 is amended by omitting its last two sentences, beginning with "They are at liberty" and ending with "they must refuse it".

Paragraphs 481, 485, and 487 are canceled.

Paragraph 484 is amended to read as follows:

484. *Performance of Notarial Services Obligatory.*

Every consular officer of the United States is hereby required, whenever application is made to him therefor, within the limits of his consulate, to administer to or take from any person any oath, affirmation, affidavit, or deposition, and to perform any other notarial act which any notary public is required or authorized by law to do within the United States; and for every such notarial act performed he shall charge in each instance the appropriate fee prescribed by the President under section seventeen hundred and forty-five, Revised Statutes.

Paragraph 486 is amended to read as follows:

486. Record of notarial and other services.—The notarial and miscellaneous fee-book shall contain a complete and true record of each notarial act, oath, affidavit, affirmation, deposition, authentication, and of every other service rendered by any officer of the consulate or consular agency hitherto classed as unofficial or personal, together with the fees or compensation charged, collected, or accepted therefor; and a sworn transcript of such record (form 159) shall be forwarded to the Auditor at the end of each quarter. It will no longer be necessary to send a copy of this record to the Department of State.

Paragraphs 488 and 489 are combined and revised to read as follows:

488. Commission to take testimony.—When a court in the United States appoints a consular officer commissioner to take testimony in a foreign country for the use of that court, the commission is usually accompanied by interrogatories and full instructions which the consular officer must carefully follow. In such cases the consular officer acts both in his official consular capacity and as an officer of the court which issues the commission. His charges are official and must be in strict accordance with the tariff of fees prescribed by the President.

When it is necessary to insure payment of such fees, the consular officer is authorized to retain the papers committed to him in connection with such service until the prescribed fees, for which he is responsible to the government, have been paid.

Paragraph 506 is amended by adding to the first paragraph the following:

Vice-consuls-general, deputy consuls-general, vice-consuls, and deputy consuls, in addition to such compensation as they may be entitled to receive

as consuls or clerks, may receive such portion of the salaries of the consuls-general or consuls for whom they act as shall be provided by regulation.

In those cases where the vice consular officer receives compensation from the Government as a clerk or other officer, he shall be entitled, in addition to such compensation, only to such share of the consul's salary, during the absence of the latter from his district on leave, as will raise his entire compensation to an amount equal to one-half of the consul's salary, unless a different rate has been fixed by written agreement with the consul.

Paragraph 510 is amended to read as follows:

510. Compensation of consular agents.—Consular agents are paid by one-half of the fees received in their offices, up to a maximum sum of $1000 in any one fiscal year, the other half being accounted for and paid into the Treasury of the United States.

If the total amount of fees received at a consular agency during a fiscal year exceeds $2000, such surplus must be remitted in full to the Treasury of the United States in addition to the $1000 due to the Government as prescribed above. This provision of the law changes forms 190 and 191.

Paragraph 519 is amended to read as follows:

519. *All fees and other Compensation Official.*

All fees and charges are official, including fees for taking depositions, executing commissions or letters rogatory, settling estates, receiving or paying out moneys, caring for or disposing of property, and shall be accounted for and paid into the Treasury of the United States. This rule applies also to substitute and subordinate officers in consulates and to clerks and other employees.

Official Fee-Stamps.—Every consular officer in charge of an office will, upon requisition therefor, be supplied by the Department of State, with official fee-stamps on which shall be printed the equivalent money value of denominations and to amounts to be determined by the Department of State, and he shall account quarterly to the Department of State for the use of such stamps and for such of them as shall remain in his hands.

Whenever a consular officer is required or finds it necessary to perform any consular or notarial act he shall prepare and deliver to the party or parties at whose instance such act is performed a suitable and appropriate document as prescribed in the consular regulations and affix thereto and duly cancel an adhesive stamp or stamps of the denomination or denominations equivalent to the fee prescribed for such consular or notarial act, and no such act shall be legally valid within the jurisdiction of the Government of the United States unless such stamp or stamps is or are affixed and canceled. Inasmuch as expenses which are to be collected under certain circumstances in addition to the fees prescribed are not regarded as fees but as reimbursement for outlays made by the consular officer, stamps for the amount of expenses collected will not be affixed.

Paragraph 566 is amended to read as follows:

566. Drafts for Salary and Expenses.

1. When the amount received by any salaried consular officer on account of official fees during the quarter is less than his salary for such quarter, he may draw on the Secretary of the Treasury for the difference at fifteen days sight. It must be stated on the face of the draft that it is for the residue of salary, and the quarter or period for which it is drawn must also be stated.

2. Consular officers at those places where the official fees cover the salary, but are insufficient to cover the salary and official expenses including the compensation of subordinate officers and employees, will be permitted to draw on the Secretary of State for such sums as may be needed to make necessary payments thereon but not in excess of the amount authorized to be expended therefor.

Paragraph 580 is amended to read as follows:

580. All drafts drawn by consular officers, whether on the Secretary of State or on the Secretary of the Treasury, are to be drawn at fifteen days sight, acceptance waived.

Paragraph 581 is amended to read as follows:

581. The payment of drafts of consular officers will be considered as an advance of public money to them for which they will be held accountable under their official bonds, and will not be considered as a payment or settlement on account.

All paragraphs and parts of paragraphs of the Consular Regulations inconsistent with these provisions are hereby annulled, and all other parts of the Regulations shall be construed in conformity herewith.

THEODORE ROOSEVELT

THE WHITE HOUSE,
August 13, 1906.

August 13, 1906.
EXECUTIVE ORDER.
Amendments to Consular Regulations.